

HEADNOTE

“1. Pursuant to Rule 4.2 RoP, the parties are required to use the official forms made available online. This also includes the various workflows. Within these workflows, no further requests may be filed that are assigned to other workflows and/or require different handling.

2. In the workflow according to Rule 262.2 RoP, a party may request protection from being known to third parties. Upon receipt of the request, preliminary protection is automatically provided. If a third party seeks access, the request will be reviewed by the court. This also applies in the event that this information is contained in an order or decision of the court. The parties to the proceedings are the requesting party and the third party. Other parties to the case are not involved in the proceedings.

3. In the workflow according to Rule 262A RoP, a party may request protection for confidential information vis-à-vis another party to the proceedings. Prior to issuing the order, this other party to the proceedings must be heard (Rule 262A.4 RoP).

4. The exclusion of the public from the interim hearing and oral proceedings is governed in Rules 105.2 and 115 RoP. Separate workflows are not available in this regard. Accordingly, requests directed to this end must be filed in the workflow of the main proceedings (here: infringement proceedings).”

COURT
Local Division in Munich

PROCEEDINGS
Procedural order

PATENT
EP3611989

Method and apparatus for transmitting
wireless local area network information

KEYWORDS

Official forms

Workflows

Confidential information

Confidentiality request

Exclusion of public

Rule 4 Lodging of documents

SUMMARY

The Local Division in Munich issued a procedural order. The patent at issue relates to a method and apparatus for transmitting wireless local area network information. According to the headnotes of the decision, parties must use the official forms and workflows available online, and cannot file requests within one workflow that belong to a different workflow. When a party requests confidentiality under Rule 262.2 RoP, preliminary protection is automatically granted, and any third-party access request is reviewed by the court with only the requesting party and that third party involved in the proceedings. A party may request confidential treatment of information against another party to the proceedings, though that other party must be given an opportunity to be heard before any such order is issued. Requests to exclude the public from interim hearings or oral proceedings must be filed within the main proceedings workflow rather than through separate procedures, as the relevant rules do not establish distinct workflows for this purpose.